

24NNCP00481 24NNCP00481

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Case Number: 24NNCP00481 Hearing Date: September 4, 2026 Dept: B

Hon. Victor Avila, Dept B

Petition to Approve Minor's Compromises

Hearing Date: 9/4/26

CASE NO.: 24NNCP00481

CASE NAME: Asaduriyan, et al. v. Metromile Insurance Co

Petitioner: Araz Asaduriyan

Minor Claimants: Vahagn Asaduriyan and Nairi Asaduriyan

Ruling: CONTINUE

NOTICE

The Court is not requesting oral argument on this matter/motion. The Court is guided by California Rules of Court, Rule 3.1308(a)(1) whereby notice of intent to appear is requested. Unless the Court directs argument in the Tentative Ruling, no argument is requested and ANY PARTY SEEKING ARGUMENT SHOULD NOTIFY ALL OTHER PARTIES AND THE COURT BY 4:00 P.M. ON THE COURT DAY BEFORE THE HEARING of the party's intention to argue as to this matter/motion. The tentative ruling will become the ruling of the court if no argument is received. Notice may be given either by email at BurDeptB@LACourt.org or by telephone at (818) 260-8422.

Parties must appear on all other matters scheduled for this case.

BACKGROUND

This is a personal injury action arising out of a motor vehicle accident which occurred on October 19, 2021. Minors Vahagn Asaduriyan and Nairi Asaduriyan (collectively Minor Claimants) were in the vehicle being operated by their parent and petitioner Araz Asaduriyan (Petitioner). Because the negligent driver was uninsured, Petitioner filed a petition on August 21, 2024, requesting that the Court open an uninsured motorist case.

On July 31, 2026, Petitioner filed the instant petitions to confirm minor's compromise for both Minor Claimants.

LEGAL STANDARD

Court approval is required for all settlements of a minor's claim or that of a person lacking the capacity to make decisions. (Prob. Code, §§ 2504, 3500, 3600 et seq.; Code Civ. Proc., § 372; see *Pearson v. Superior Court* (2012) 202 Cal.App.4th 1333, 1337.)

"[T]he protective role the court generally assumes in cases involving minors, [is] a role to assure that whatever is done is in the minor's best interests . . . [I]ts primary concern is whether the compromise is sufficient to provide for the minor's injuries, care and treatment." (*Goldberg v. Superior Court* (1994) 23 Cal.App.4th 1378, 1382.)

A petition for court approval of a compromise or covenant not to sue under Code of Civil Procedure section 372 must comply with California Rules of Court Rules 7.950, 7.951, and 7.952. The petition must be verified by the petitioner and contain a full disclosure of all information that has "any bearing upon the reasonableness" of the compromise or the covenant. (Cal. Rules of Court, rule 7.950.) The person compromising the claim on behalf of the minor or person who lacks capacity, and the represented person, must attend the hearing on compromise of the claim unless the court for good cause dispenses with their personal appearance. (Cal. Rules of Court, rule 7.952(a).)

An order for deposit of funds of a minor or person lacking decision-making capacity and a petition for the withdrawal of such funds must comply with California Rules of Court Rules 7.953 and 7.954. (Cal. Rules of Court, rule 3.1384; see also Super. Ct. L.A. County, Local Rules, rules 4.115-4.118.)

DISCUSSION

Procedural Requirements

Petitioner has filed Proposed Orders with the petitions. (*Scruton v. Korean Air Lines Co., Ltd.* (1995) 39 Cal.App.4th 1596, 1603-1605 [stating that a petition for court approval must comply with Cal. Rules of Court, rules 7.950, 7.950.5, 7.591 and 7.952].) Petitioner uses Judicial Council form MC-350 for the petitions and presents the Court with proposed orders approving compromise of the disputed claim.

The Petition is thus procedurally proper.

Substantive Requirements

The petitions show that Minor Claimants Vahagn Asaduriyan and Nairi Asaduriyan settled with Defendant for total amount of \$31,000 each.

Vahagn
Asaduriyan

Of the \$31,000 allocated to Minor Claimant Vahagn, \$600 will be used to pay medical expenses, \$7,750 will be used to pay attorney's fees, and \$156.76 will be used to pay non-medical expenses, leaving a balance of \$22,493.24. Petitioners propose the net proceeds be invested in a single-premium deferred annuity, subject to withdrawal only on authorization of the Court. The Court notes the terms and conditions of the annuity submitted with the petition expired, at latest, March 2, 2026. (Vahagn Pet., Attachment 18(b)(3).)

The Court finds the settlements are fair, reasonable and in the best interests of Minor

Claimant. Further, the Court finds that the declaration of Marine Davtyan is sufficient to support the request for attorney's fees in the amount of \$7,750 (representing 25 percent of the gross \$31,000 settlement). (Vahagn Pet., Attachment 13a, Davtyan Decl., ¶¶ 15-17.)

However, the Court has not been given current and accurate terms and conditions of the annuity.

Nairi Asaduriyan

Of the \$31,000 allocated to Minor Claimant Nairi, \$1,311.75 will be used to pay medical expenses, \$7,750 will be used to pay attorney's fees, and \$156.76 will be used to pay non-medical expenses, leaving a balance of \$21,781.49. Petitioners propose the net proceeds be invested in a single-premium deferred annuity, subject to withdrawal only on authorization of the Court. The Court notes the terms and conditions of the annuity submitted with the petition expired, at latest, March 2, 2026. (Nairi Pet., Attachment 18(b)(3).)

The Court finds the settlements are fair, reasonable and in the best interests of Minor Claimant. Further, the Court finds that the declaration of Marine Davtyan is sufficient to support the request for attorney's fees in the amount of \$7,750 (representing 25 percent of the gross \$31,000 settlement). (Nairi Pet., Attachment 13a, Davtyan Decl., ¶¶ 15-17.)

However, the Court has not been given current and accurate terms and conditions of the annuity.

Accordingly, the Court CONTINUES hearings on the instant petitions in order for Petitioner to provide supplemental information including current and accurate terms and conditions for the proposed annuity involving both Minor Claimants.

CONCLUSION
AND ORDER

Plaintiff Araz

Asaduriyan's petitions to approve compromise of pending action on behalf of Minor
Claimants Vahagn Asaduriyan and Nairi Asaduriyan are CONTINUED.

MOVING PARTY

shall

provide notice.